# Marbury v. Madison

*U.S. Supreme Court · 5 U.S. 137 · 1803 · Chief Justice John Marshall (majority)*

*Source: Marbury v. Madison, 5 U.S. 137 (1803), opinion of the Court by Chief Justice Marshall, text via Cornell Legal Information Institute. Public domain.*

When Federalist John Adams lost the 1800 election he packed the courts with last-minute appointments. William Marbury was one of those 'midnight judges.' When Jefferson's new Secretary of State, James Madison, refused to deliver Marbury's commission, Marbury sued. Chief Justice Marshall — a Federalist — sided politically with Marbury but ruled the Court could not order delivery, because the law Marbury sued under was itself unconstitutional. In doing so, Marshall established the principle of judicial review.

*Connect: The Marshall Court cases (McCulloch, Gibbons) built on the debate from Class 6 over broad vs. strict construction. Which side won at the Court?*

## Key Passages

### The Judiciary Act's flaw

> The authority, therefore, given to the supreme court, by the act establishing the judicial courts of the United States, to issue writs of mandamus to public officers, appears not to be warranted by the constitution

### It is emphatically the province

> It is emphatically the province and duty of the judicial department to say what the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule. If two laws conflict with each other, the courts must decide on the operation of each.

### Holding

> the particular phraseology of the constitution of the United States confirms and strengthens the principle, supposed to be essential to all written constitutions, that a law repugnant to the constitution is void, and that courts, as well as other departments, are bound by that instrument.

## HIPP Analysis

*Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.*

| HIPP Element | Your Analysis |
|---|---|
| ***Historical Situation***<br>*What was happening when this was written?* | The 'Revolution of 1800': Federalist John Adams lost to Jefferson and filled the courts with last-minute 'midnight judge' appointments; Madison withheld Marbury's commission. |
| ***Intended Audience***<br>*Who was the source written for?* | The parties to the case, Congress, and the Jefferson administration, and through them the legal and political community. |

| HIPP Element | Your Analysis |
| --- | --- |
| ***Point of View***<br>*Whose perspective? Whose is missing?* | Chief Justice John Marshall, a Federalist and Adams appointee, who wanted to strengthen the judiciary without starting a fight with Jefferson that the Court would lose. |
| ***Purpose***<br>*What did the author want to accomplish?* | |

## Analysis Prompts

1. LEQ Thesis (1 pt): Write a defensible thesis evaluating the political vs. constitutional significance of Marbury v. Madison.
2. Explain how Marshall managed a short-term political loss while securing a long-term institutional win.
3. How did judicial review reshape the balance of powers established in 1787?

# Marbury v. Madison

*Chief Justice John Marshall · 1803*

*Source: Marbury v. Madison, 5 U.S. 137 (1803), opinion of the Court by Chief Justice Marshall, text via Cornell Legal Information Institute. Public domain. Non-contiguous passages are separated by [ . . . ]; shorter cuts inside a passage are marked with an ellipsis ( . . . ).*

> Marshall's landmark ruling established judicial review — the power of the courts to strike down laws that violate the Constitution — making the judiciary a co-equal branch of government.

### The three questions

In the order in which the court has viewed this subject, the following questions have been considered and decided.

1. Has the applicant a right to the commission he demands?

2. If he has a right, and that right has been violated, do the laws of his country afford him a remedy?

3. If they do afford him a remedy, is it a mandamus issuing from this court?

[ . . . ]

### Marbury has a right and a remedy

The government of the United States has been emphatically termed a government of laws, and not of men. It will certainly cease to deserve this high appellation, if the laws furnish no remedy for the violation of a vested legal right. . . . It is then the opinion of the court,

1. That by signing the commission of Mr. Marbury, the president of the United States appointed him a justice of peace for the county of Washington in the district of Columbia; and that the seal of the United States, affixed thereto by the secretary of state, is conclusive testimony of the verity of the signature, and of the completion of the appointment; and that the appointment conferred on him a legal right to the office for the space of five years.

2. That, having this legal title to the office, he has a consequent right to the commission; a refusal to deliver which is a plain violation of that right, for which the laws of his country afford him a remedy.

[ . . . ]

### But the Judiciary Act's grant of power is unconstitutional

The authority, therefore, given to the supreme court, by the act establishing the judicial courts of the United States, to issue writs of mandamus to public officers, appears not to be warranted by the constitution; and it becomes necessary to inquire whether a jurisdiction, so conferred, can be exercised.

[ . . . ]

### Hierarchy of law

The government of the United States is of the latter description. The powers of the legislature are defined and limited; and that those limits may not be mistaken or forgotten, the constitution is written. To what purpose are powers limited, and to what purpose is that limitation committed to writing; if these limits may, at any time, be passed by those intended to be restrained? The distinction between a government with limited and unlimited powers is abolished, if those limits do not confine the persons on whom they are imposed, and if acts prohibited and acts allowed are of equal obligation. It is a proposition too plain to be contested, that the constitution controls any legislative act repugnant to it; or, that the legislature may alter the constitution by an ordinary act.

Between these alternatives there is no middle ground. The constitution is either a superior, paramount law, unchangeable by ordinary means, or it is on a level with ordinary legislative acts, and like other acts, is alterable when the legislature shall please to alter it. . . . Certainly all those who have framed written constitutions contemplate them as forming the fundamental and paramount law of the nation, and consequently the theory of every such government must be, that an act of the legislature repugnant to the constitution is void.

[ . . . ]

### It is emphatically the province

It is emphatically the province and duty of the judicial department to say what the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule. If two laws conflict with each other, the courts must decide on the operation of each.

So if a law be in opposition to the constitution: if both the law and the constitution apply to a particular case, so that the court must either decide that case conformably to the law, disregarding the constitution; or conformably to the constitution, disregarding the law: the court must determine which of these conflicting rules governs the case. This is of the very essence of judicial duty.

If then the courts are to regard the constitution; and the constitution is superior to any ordinary act of the legislature; the constitution, and not such ordinary act, must govern the case to which they both apply. . . . This doctrine would subvert the very foundation of all written constitutions. It would declare that an act, which, according to the principles and theory of our government, is entirely void, is yet, in practice, completely obligatory.

[ . . . ]

### Holding

Thus, the particular phraseology of the constitution of the United States confirms and strengthens the principle, supposed to be essential to all written constitutions, that a law repugnant to the constitution is void, and that courts, as well as other departments, are bound by that instrument.

The rule must be discharged.

---

### Words to know

**commission** — the official document that installs a person in a government office

**mandamus** — a court order forcing an official to carry out a duty

**jurisdiction** — a court's legal authority to hear a type of case

**repugnant** — in conflict with; contradicting

**paramount** — highest; overriding all other law

**province** — proper area of responsibility